

**FEDERAL MARITIME COMMISSION
OFFICE OF ADMINISTRATIVE LAW JUDGES**

MARIE S. CAREW d/b/a HOLIDAY SHIPPING,

Complainant,

-against-

MAERSK LINE A/S and JOHN DOES,

Respondents.

Docket No. 20-17

DECLARATION

I, Lou Palazzo, hereby declare as follows:

1. I am the Accounts Receivable Process & Accounts Manager for Maersk Agency U.S.A., Inc., the local agent for Respondent MAERK LINE A/S (“MAERSK”), in the above-entitled matter. As such, I am familiar, based on my personal knowledge, as well as my review of records maintained by my office, with the circumstances underlying this dispute. And on behalf of MAERSK I respectfully submit the following response to the Commission’s Order dated June 9, 2021.

2. As previously addressed in the parties’ Joint Status Report, my prior Declaration in connection therewith, as well as the case law cited by counsel, delivery under the sea waybills at issue was accomplished more than two-and-a-half years ago by discharge to the port facilities controlled by the Nigeria Ports Authority (“NPA”). See, Docket Entry No. 10; see also, Sea Waybills, Docket Entry No. 8. Its obligations under the sea waybills having then been fulfilled, MAERSK owed no further duty with respect to the cargoes. Id.

3. Nonetheless, in response to the Commission’s Order dated January 25, 2021, Your Declarant asked MAERSK’s agent at Lagos to inquire into the status the four containers which are the subject of the Complaint. It was then determined that the containers were still at

Lagos awaiting pick-up by the consignees. Id. I was also advised that the cargoes were under a Nigerian Customs hold, but further details were unavailable. Id. And this information was duly relayed to the Complainant and the Commission, accordingly. Id.

4. As the sea waybills are non-negotiable, presentation of the original is not required by MAERSK in order to take receipt of the goods; the named consignee is entitled to possession. Nor is any particular document needed by MAERSK to allow the containers' release to the consignees. Indeed, as stated above, the cargoes have already been delivered as far as MAERSK is concerned. Again, I confirm MAERSK has not asserted any lien on the cargoes or otherwise made any attempt to impede their release to the consignees.

5. Upon information and belief, however, to obtain delivery from the NPA, the consignees may be required to comply with local statutory requirements, submit applicable paperwork, and pay any duties assessed on the goods. As the containers have been stored under the NPA's auspices for such a lengthy period of time, it would not be at all surprising were significant amounts now needed to be paid in order for the NPA to clear the cargoes for release. It is possible that the consignees may have simply declined to pay the sums required. But that is a matter which should properly be addressed by the Complainant shipper, the consignees, and the NPA. MAERSK has no control over that process.

I declare under penalty of perjury that the foregoing statements are true and correct.

Executed: Florham Park, New Jersey
July 8, 2021

Respectfully submitted,

By: Louis Palazzo
(LPA103)
Lou Palazzo

Digitally signed by Louis
Palazzo (LPA103)
Date: 2021.06.14
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